

File No.: EXP202210702

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 7, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against Club Balonmano Gijón (hereinafter, the respondent), through the Agreement transcribed below:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) on August 17, 2022, filed a complaint with the Spanish Agency for Data Protection against the City Council of Gijón, Club Balonmano Gijón, and the Municipal Sports Board of Gijón.

The reasons for the complaint are as follows:

On July 16, 2022, the complainant sent a query to the data protection officer that has not been answered. In the aforementioned document, they requested information regarding the following issues:

1º To determine the criterion that legitimized the dissemination of images of minors on the website and social media of the sports board. In this regard, they indicated that they do not recall having authorized the dissemination of images of their daughter (which is currently visible).

2º To specify which of the activities listed in the inventory of the treatment activity register published by the respondent corresponds to those carried out by the sports schools of the Sports Board.

3º To respond regarding when and through what system they have evidence that the holders of parental authority or guardianship of the children from 1st to 6th grade participating in the sports schools have received the information required by Articles 13 and 14 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

4º Whether they have data protection contracts with all the data processors of the sports schools of the Sports Board.

5º Whether an impact assessment has been carried out.

6º Whether the respondent complies with the security measures established in the first additional provision of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD).

7º Whether the security breach that occurred on April 19, 2022, had been reported to the AEPD.

Along with the complaint, they provided:

- A copy of the email sent to the data protection officer of the City Council of Gijón (***EMAIL.1), dated June 16, 2022, in which they request the aforementioned points and provide the web addresses of the publications of the photographs of Club Balonmano Gijón.

- A copy of the email sent to the data protection officer of the City Council requesting access to the treatment activity register of the City Council and the municipal sports board, dated February 14, 2020.

- A copy of the resolution of Warning from the Agency regarding the sanctioning procedure PS/00427/2020 in relation to a complaint filed by the complainant on June 17, 2020, for not having a Treatment Activity Register.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the City Council of Gijón for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 13, 2022, as stated in the certificate in the file.

On November 14 and 23, 2022, responses were received from the City Council in which the following

was stated:

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The City Council states that due to the transfer of the complaint made by the Agency, an administrative file has been opened in which information has been gathered from the Municipal Sports Board.

From the information gathered regarding the sports activities carried out by the Autonomous Organization Municipal Sports Board in the so-called "Sports Schools" programs, in exercise of the municipal competence in the area of promotion of sports and sports facilities and leisure time occupation as outlined in Article 25.2.I) of Law 7/1985, of April 2, which regulates the bases of local regime and establishes: "The Municipality shall exercise, in any case, as its own competencies, in accordance with the legislation of the State and the Autonomous Communities, in the following matters... Promotion of sports and sports facilities and leisure time occupation."

And the Board has established collaboration with Educational Centers in Gijón, both public, concerted, and private, through annual calls, in whose bases it is specified that registrations and management of sports activities will be carried out by the School Council of each beneficiary Educational Center.

Likewise, the Municipal Sports Board signs collaboration agreements with sports clubs, as is the case with the Gijón Handball Club, for the purpose of "promoting High-Level Handball and Base Sports (Sports Schools)."

The City Council states that the published images are found on the City Council's website and regarding the Treatment Activities Register, approved by the Mayor's Resolution of June 21, 2021, published in BOPA No. 126, of July 1, 2021, and on the municipal website, the sports activities are framed in "RAT039 Sports Services," whose purpose of treatment is "Management of information, programs, and provision of sports services," including among the categories of personal data those of image and "other information necessary for the activities (such as authorizations for minors)."

THIRD: On November 17, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On March 2 and 3, 2023, new complaints were received from the complainant reporting the existence of two sanctioning procedures motivated by his complaints (PS/00285/2020 to the Handball Federation of the Principality of Asturias and PS/00427/2020 against the City Council of Gijón). He provides written authorizations for the processing of data of minors from the Gijón Handball Club and the Spanish Handball Federation and a written complaint against the Gijón Handball Club in which he provides, among other documentation, Regulations for sports schools 2020/2021, Statutes of the Gijón Handball Club, information about the mentioned club on the Transparency portal of the City Council, and an email sent to the

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Data protection delegate of the City Council and to the Mayor, including documents submitted in their complaints.

On February 23, 2023, the Data Inspection accessed some of the addresses provided by the complainant, verifying the publication of photographs from the Gijón Handball Club, among which are images of minors, including the daughter of the complainant.

Regarding information received during the inspection proceedings:

On March 1, 2023, information requests were sent to the City Council, the Board, and the Gijón Handball Club (hereinafter referred to as the Club).

On March 2, 2023, information was received from the City Council, which stated that the Club informs legal guardians about the data protection policy and that they must sign a consent form.

The authorization document for the processing of minors' data from the Gijón Handball Club is signed by the complainant in their capacity as guardian, dated January 2, 2021. It also grants consent by marking the corresponding box for advertising communications and the use of personal data in any medium (direct marketing, social networks, email) for the promotion of the Handball Club.

On March 16 and 27, responses were received from the City Council regarding the request for information, in which the following is stated:

The City Council has been made aware of the requests issued from the Data Inspection to the Board and the Club, stating that an administrative file has been opened and that in the sports activities subject to the complaint, the Municipal Sports Board assumes the role of Data Processor, without prejudice to its relationships with the entities participating in the "Sports Schools" programs, since, among other reasons, the Board develops the City Council's competencies in promoting sports activities.

Regarding the inquiry to the data protection delegate made by the complainant: In the document where consent is requested for the processing of the realization and use of images mentioned in previous points, the legal basis is stated as the legal relationship for the activity and the consent of the interested party. Furthermore, this document signed by the complainant has been provided.

Regarding the Register of Processing Activities: the sports activities are framed within the "RAT039 Sports Services," whose purpose of processing is the "Management of information, programs, and provision of sports services," including among the categories of personal data those of image and "other information necessary for the activities (such as authorizations for minors)."

In relation to the information provided to guardians regarding data protection, the City Council states that "In light of the definition, nature, and purpose of the Impact Assessment of the processing of personal data (art. 35).

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GDPR, Considering 84 GDPR; art. 28 GDPR and the guidance lists published by the AEPD regarding data processing that require a DPIA and those that do not require one), the processing carried out does not meet the conditions for conducting impact assessments, not posing a high risk to the rights and freedoms of the affected individuals.

Regarding the security breach: On April 22, 2022, an initial notification was made to the AEPD of a breach of availability caused by a ransomware cyberattack detected on April 19, 2022.

On June 3, 2022, a complete notification was made, providing a report on the breach.

The AEPD's Communicates Breach tool yielded a positive result due to the volume of affected individuals, which led to public announcements in various media outlets so that the affected individuals could be informed of the situation from the moment the cyberattack occurred. Furthermore, administrative deadlines were suspended due to the incident, as announced on the municipality's website. In this regard, the Data Inspection has verified the publication of the breach at the addresses provided by the municipality since 04/19/2022 and the notice of the suspension of deadlines.

(Diligence D PUBLICATIONS) All files were affected by the breach as services were suspended, and since it was not possible to assess the number of affected individuals, they estimate the figure to be the population of the municipality, which is 250,000 inhabitants.

In the risk analysis report as a consequence of the breach, it is concluded that, being a breach of availability, it does not constitute a high risk to the rights and freedoms of natural persons.

As a result of the incident, the municipality has adopted new measures, including: deployment of two-factor authentication, maximum restriction of Internet connectivity (Whitelist), review of system patching prior to production deployment, and identification of obsolete systems.

FIFTH: On September 20, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appealing party on September 21, 2023, as stated in the acknowledgment of receipt in the file.

SIXTH: The complaining party submitted on October 20, 2023, to this Spanish Agency for Data Protection, a request for reconsideration, fundamentally arguing that the consent provided to the Gijón Handball Club was signed on January 2, 2021, and the images published of her minor daughter correspond to the 2019-2020 season. Additionally, the consent boxes for sending advertising and for publishing personal data on social media are pre-checked. She insists that the Gijón municipality has made an error in the RAT of sports activities by considering consent as a legitimate basis since it is not obtained lawfully. The necessity for an Evaluation would not have been properly analyzed.

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Impact. The security measures would also be inadequate, and there is a lack of notification regarding the security breach suffered by the claimant.

SEVENTH: On November 13, 2023, the optional appeal for reconsideration submitted by the claimant is resolved, with the Director of this Agency determining that no new facts or legal arguments have been presented that would allow for a reconsideration of the validity of the claim made against the City Council of Gijón. However, from the prior investigative actions carried out, a presumed action contrary to data protection regulations by the Club Balonmano Gijón has been detected.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;"

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them."

In this case, the dissemination of images of the minor on the website of the party being claimed against occurred, and there is no record of consent from the parents or holders of parental authority or guardianship at the time of publication.

III

Lawfulness of the Processing of Personal Data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be: a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency); (...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances under which the processing of personal data may be considered lawful are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

Furthermore, Recital 40 of the aforementioned GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law."

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Member States referred to in this Regulation, including the need to comply with the legal obligation applicable to the data controller or the need to execute a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract."

For its part, Article 7 of the GDPR "Conditions for Consent" establishes:

"1. When the processing is based on the consent of the data subject, the controller must be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent must be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration that constitutes a violation of this Regulation shall be binding."

(...)

Consequently, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the respondent may have violated Article 6.1 of the GDPR as the unlawfulness of the processing carried out is evidenced, without any of the legal bases provided for in the aforementioned article being accredited for the processing of the claimant's data in relation to the capture and dissemination of images of a minor on the website of the respondent.

IV

Classification and Qualification of the Violation

If confirmed, the aforementioned violation of Article 6.1 of the GDPR could constitute the commission of the violation classified in Article 83.5 of the GDPR which under the heading "General Conditions for the Imposition of Administrative Fines" provides: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for violations, the alleged violation is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the

following conduct as very serious:

Article 72. Very Serious Violations.

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

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a) (...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

V

Proposed Sanction

The corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, are established in Article 58.2 of the GDPR.

Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, taking into account the facts presented and without prejudice to what may result from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states: "2.

Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraphs 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures that have been implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

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g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party could have included the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The balance of the circumstances considered allows for an initial assessment of a fine of ONE THOUSAND EUROS (€1,000) for the infringement of Article 6.1 of the GDPR.

VI

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In such a case, in the resolution adopted, this Agency may require the responsible entity to, within one month,

- adjust the personal data protection regulations to the processing operations it carries out, to the extent expressed in the Legal Grounds of this agreement and without prejudice to what results from the instruction.

- certify that in the corresponding forms that the members of the Club must submit signed, it is guaranteed that the provision of consent for the processing of data has been given freely, allowing separate authorization for the different processing operations and without pre-checked boxes.

- proceed to update the images published on the website to include only those of minors for whom the necessary consent has been obtained.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against Club Balonmano Gijón, with NIF G33649948, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the

GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirector for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

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FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of ONE THOUSAND EUROS (1,000€), without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to Club Balonmano Gijón, with NIF G33649948, granting it a hearing period of ten working days to submit any allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at EIGHT HUNDRED EUROS (800€), resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at EIGHT HUNDRED EUROS (800€), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be established at SIX HUNDRED EUROS (600€).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (800 euros or 600 euros), it must make the payment effective by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 10, 2024, the respondent has proceeded to pay the sanction in the amount of 600 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for formulating allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except with regard to the restoration of the altered situation or the

determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202210702, in accordance with the provisions of Article 85 of the LPACAP.

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SECOND: TO ORDER Club Balonmano Gijón to notify the Agency of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution within 1 month from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to Club Balonmano Gijón.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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